

(Zhurnalova-Juppunov Decl. Ex. 8.) In that Motion, she confirmed that her claim “is for \$200,000,” and as such there is no “automatic right for the Respondent to unilaterally assert the right for a Party Arbitrator.” (*Ibid.*) Accordingly, she requested that the earlier ruling allowing the Kaiser Respondents to “rescind its party arbitrator waiver be reversed” and that the matter proceed with a single arbitrator. (*Ibid.*)

On November 26, 2025, the arbitrator issued its order **granting** Claimant’s Motion for Reconsideration, and confirming the “arbitration shall proceed before a single neutral arbitrator.” (Zhurnalova-Juppunov Decl. Ex. 9.)

Thus, Order No. 5, which Petitioner is claiming is the basis of her Petition, was essentially overruled by the subsequent order on Petitioner’s motion for reconsideration. As such, it is unclear what the basis of Petitioner’s claims are related to the alleged impropriety of Order No. 5. That Order never took effect and the Kaiser Respondent’s were never allowed to use their Party Arbitrator. Instead, the arbitration continued with the single neutral arbitrator appointed by the OIC – which is what Petitioner sought. Consequently, there was no prejudice to Petitioner due to Order No. 5.

### **Evidentiary Objections**

#### **Kaiser’s objections to statements in Reply:**

1-4: Overruled.

#### **Kaiser’s objections to new exhibits:**

1-4: Sustained.

### **Conclusion**

In summary: Petitioner goes out of her way to state that she is *not* challenging the arbitration ruling on its substantive merits. It is no easy task to ascertain what exactly she *is* challenging, but it appears to be only the temporary ruling that there would be multiple arbitrators – a ruling that was then changed back to a single arbitrator at petitioner’s own demand. The case was in fact ruled on by a single arbitrator, the exact procedure that petitioner says should have been used. At most there might be some gripe about her being required to forgo damages in excess of \$200,000 in order to get back to a single arbitrator. But not only is that exactly what the rules require, but it is also manifestly “no harm, no foul”. Since petitioner in fact lost this arbitration by a summary judgment of no liability – a result she does not challenge here – it cannot have mattered how large her damages demand was.

Based on the above, the Petition to Vacate the Arbitration Award is **denied**.

**14. 9:00 AM CASE NUMBER: MSC20-00628**

**CASE NAME: RISOFTEDEV VS CHATFIELD**

**\*HEARING ON MOTION IN RE: DISCOVERY SANCTIONS AGAINST CHRISTOPHER L. MARTINEZ**

**FILED BY: RISOFTEDEV INC**

**\*TENTATIVE RULING:\***

Plaintiffs filed this motion in March, for terminating sanctions against defendant Christopher Martinez for failure to produce documents in discovery as previously ordered. The motion was filed in good faith at the time, but it is **dropped from calendar** in light of very recent developments.

In this corporate-opportunity case, Martinez was originally represented by the same attorney as other defendants. The others shifted to different counsel, leaving Martinez alone represented by the prior attorney. That attorney was allowed to withdraw in January 2025 due to lack of contact and payment.

Martinez and his adult son now inform the Court that Martinez was suffering from serious medical issues in the interim. As of June 11, 2026, he is now represented by the same attorney as the other defendants (Webb). Webb has substituted in, provided a formal response to the outstanding RFP, and produced responsive documents.

The Court sympathizes with both plaintiffs' frustration at lack of timely discovery, and Martinez's unfortunate medical circumstances. Fortunately, it now appears that the problems of Martinez effectively dropping out of the case have solved themselves with Webb's appearance for Martinez and belated discovery responses.

As discussed at the CMC this Wednesday morning, the Court expects the parties – all of the parties – to meet to discuss all open issues of discovery or other exchange of information; they may want to involve a neutral if necessary before resorting to formal discovery motions. If there remain rulings needed from the Court on discovery issues, it may be appropriate to expedite the hearings in light of the trial date. At present, however, there are no such motions on the Court's calendar and the Court will be disappointed if it turns out to be necessary to rule on on discovery issues.

**15. 9:00 AM CASE NUMBER: MSC20-00933**  
**CASE NAME: WILLIAMS V. FARTHING**  
**\*HEARING ON MOTION IN RE: SET ASIDE DEFAULT JUDGMENT**  
**FILED BY: FARTHING, DAVID**  
**\*TENTATIVE RULING:\***

Default judgment was entered in this case in December 2024. Defendant Farthing, a Texas resident, filed this motion to set aside the default. (He filed the motion pro per, though counsel for him has subbed in.)

There is no proof in the Court's file that this motion was ever served on the other side. The Court notes that counsel for the plaintiff/judgment creditor has recently subbed out, with Ms. Williams now being pro per, which may perhaps suggest that the plaintiff's side is familiar with the motion – but that is far from certain and is not documented in the file. Plaintiff has filed no response to the motion.

The motion to set aside is therefore taken **off calendar**, for lack of confirmed service on the plaintiff. The motion is **continued** to August 27, 2026, at 9:00 a.m. The moving defendant must file proof by July 10 that he has served his motion on plaintiff. (Service should be by mail at the address on plaintiff's recent substitution of counsel form.)

It is suggested that defendant (directly or through his attorney) should promptly get in informal touch with plaintiff to discuss whether the matter can be settled, or if not, at least whether the parties can agree to vacate the default and litigate the case on its merits.